

Tripura Blind and Handicapped Persons Pension Rules, 1980

Source: <https://indiankanoon.org/doc/97399309/>

[Skip to main content](#)

[Legal Document View](#)

[Tools for analyzing structure and cite text of judgments](#)

[Unlock Advanced Research with](#)

[PRISM](#)

[AI](#)

[Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions](#)

-

[Know your Kanoon](#)

-

[Doc Gen Hub](#)

-

[Counter Argument](#)

-

[Case Predict AI](#)

-

[Talk with IK Doc](#)

-

...

[Upgrade to Premium](#)

[\[Cites](#)

[0](#)

[, Cited by](#)

[0](#)

[\]](#)

[State of Tripura - Act](#)

[Tripura Blind and Handicapped Persons Pension Rules, 1980](#)

[TRIPURA](#)

[India](#)

[Tripura Blind and Handicapped Persons Pension Rules, 1980](#)

[Rule TRIPURA-BLIND-AND-HANDICAPPED-PERSONS-PENSION-RULES-1980 of 1980](#)

[Published on 2 June 1980](#)

[Commenced on 2 June 1980](#)

[\[This is the version of this document from 2 June 1980.\]](#)

[\[Note: The original publication document is not available and this content could not be verified.\]](#)

[Tripura Blind and Handicapped Persons Pension Rules, 1980](#)

[Published vide Notification Tripura Gazette, Extraordinary, No. 110, dated 2.6.1980](#)

[Last Updated 18th February, 2020](#)

[Notification No. F. 8 \(1\)-Fin\(G\)/80, dated 31st March, 1980. - The Governor of Tripura is pleased to make the following Rules to regulate the Pension of Blind and Handicapped Persons residing the Tripura, namely :](#)

[1.](#)

[Short title and commencement.](#)

[- \(i\) These rules may be called the Tripura Blind and Handicapped Persons Pension Rules, 1980.](#)

[\(ii\)](#)

[They shall come into force with effect from the date of their publication in the Tripura Gazette.](#)

[2.](#)

They shall apply to all persons who are citizens of India and permanently residing within the State of Tripura.

3.

Definitions.

- In these rules unless the context otherwise requires-

(a)

"Audit Officer" means the Accountant General, Tripura;

(b)

"Disbursing Officer" means the Sub-Divisional Officer/Block Development Officer/Project Executive Officer of the area in which the pensioner resides or any other officer so declared by the Government;

(c)

"family" means the blind and handicapped pensioner, his parents, his or her husband or wife, as the case may be, sons and unmarried daughters;

(d)

"Form" means form appended to these rules;

(e)

"Government" means the Government of Tripura;

(f)

"Pension Sanctioning Authority" means the authority competent to sanction pension under Rule 7;

(g)

"Treasury" includes sub-Treasury;

(h)

"blind and handicapped" means a person who is totally blind of both the eyes either from birth or otherwise, and 'handicapped' means a person who is physically handicapped from birth or who has been rendered physically handicapped otherwise and is fully incapable of earning any livelihood only because of such disability.

4.

Eligibility.

- The State Government may grant pension at the rate of Rs. 30 (Thirty) per month to any blind or handicapped person who has attained the age of 18 years and above and is fully incapable of earning any livelihood :

Provided that no such pension shall be admissible when total family income from all sources exceeds Rs. 4000 per annum;

Provided further that no such pension shall be admissible to person who has already received financial or other benefits from Central Government, State Government, Local Bodies, Statutory Corporations, Public Sector Undertakings or Nationalised Institutions and similar other Organisations on ground of blindness or of being physically handicapped.

Note. - For the purpose of these rules age of a person shall be determined with reference to his date of birth as recorded in the Matriculation Certificate, Municipal Birth Certificate or similar other documents. Where, however, the person is unable to procure any such certificate he may declare an approximate date. The assumed date determined on the basis of such declaration shall be authenticated by the Head of Panchayat/Municipality/Notified Committee of the area where the person permanently resides and also supported by the medical certificate to that effect.

5.

Amount.

- The amount of pension in each case shall be Rs. 30 per month.

6.

Claim of pension.

(1)

A person eligible to pension under these Rules shall apply to the sub-Divisional Officer/Block Development Officer/Project Executive Officer concerned in Form No. 1 in duplicate through the Head of Panchayat/Municipality/Notified Area Committee in whose jurisdiction the applicant permanently resides.

(2)

The application for pension shall be accompanied by the following documents :

(i)

Three Passport size Photographs.

(ii)

Two copies of Specimen Signatures or left hand thumb and other finger impressions duly attested by the head of the Panchayat of the area where the applicant resides (in case of illiterate person).

(iii)

Certificate in support of the date of birth.

(iv)

Medical Certificate from any registered medical practitioner regarding lack of capacity to work and also regarding the age as required under Note to Rule 4.

(3)

Heads of Panchayats/Municipality/Notified Area Committee as the case may be, shall forward the application for pension under sub-rule (1) along with a resolution of the respective Panchayat/Municipality/Notified Area Committee as to the eligibility or otherwise for the pension claimed under these Rules.

7.

Pension Sanctioning Authority.

- The Sub-Divisional Officer/Block Development Officer/Project Executive Officer concerned shall be competent to sanction pension after it is approved/recommended by the Committee.

8.

(1)

The Pension Sanctioning Authority shall, on receipt of the applications for pension from the authorities mentioned in sub-rule (3) of Rule 6, enter the same in a register to be maintained in Form No. 2, scrutinies the same, satisfy himself that the application is complete in all respects and shall thereafter refer the applicant to the Medical Officer-in-charge of the nearest Government Hospital/Primary Health Centre/Dispensary for medical examination and for issue of a certificate in Form No. 3.

(2)

He shall thereafter record his order sanctioning the pension on the application form and forward one copy of the same along with one copy of specimen signature or the thumb impression as the case may be, to the concerned office of sub-Divisional Officer/Block Development Officer/Project Executive Officer to make payment of pension retaining the other copy with him for record. Copies of the sanctions shall be endorsed to the Audit Officer/Treasury and the pensioner.

(3)

(a)

On sanctioning the pension the sub-Divisional Officer/Block Development Officer/Project Executive Officer concerned shall make the requisite checks and make payment of pension after proper identification when the pensioner appears to receive his pension for the first time. The specimen signature or the thumb impression, as the case may be, of the pensioner shall be taken, where necessary in the space provided for the purpose in Part IV of Form No. 1.

(b)

The Pension Sanctioning Authority may, on an application made by a pensioner transfer the payment of his pension from any disbursing officer to another disbursing officer within the State of Tripura.

(c)

Each Disbursing Officer shall keep a register in Form No. 5, which will serve as an index. After seeing a new order, it shall be correctly entered in this register, the Disbursing Officer shall put his initials in the column of "Name of Pensioner" and rule a red ink line across the page below the entry. The column of Remarks will be blank as long as the order of payment is in force; but when the pension sanction order is returned to the Pension Sanctioning Authority on account of death of a pensioner or application for transfer or otherwise, which causes to strike it permanently of the list of pensioners under his payment, the date and cause of return shall be entered under the Disbursing Officer's initials.

(d)

On receipt of an intimation about the death of a pensioner prompt action shall be taken by the Disbursing Officer to record the fact in the register and in Part IV of Form No. 1, and to return the pension sanction order to the Pension Sanctioning Authority.

(4)

The Sub-Divisional Officer/Block Development Officer/Project Executive Officer concerned Shall draw the amount of

monthly pension in Form T.R. 22 with suitable modification as may be necessary from the Treasury.

(5)

Pensions are payable monthly on and after the 1st day of the following month : provided that if the 1st day (including Sunday) of the following month is a Public Holiday on which pensions cannot be drawn from the Treasury, pension may be drawn and disbursed on the last working day of the month to which the pension relates except in the case of pension for the month of March which shall be paid on or after the 1st working day of the succeeding month.

Explanation. - For the purpose of this rule, the "working day" shall have the same meaning as given in the Central Treasury Rules as adopted by the State Government.

(6)

The disbursement of monthly pension shall be subject to production of the certificates laid down in Form No. 4.

(7)

Save as hereinafter provided, a pensioner must take payment in person after proper identification and comparison with the pension sanction order.

(8)

A pensioner specially exempted by the Pension Sanctioning Authority from personal appearance a female pensioner not accustomed to appear in public, or a pensioner who is unable to appear in consequence of bodily illness or infirmity may receive his or her pension through a representative on the production of a life certificate signed by a Gazetted Government Officer or by a Gaon Pradhan.

(9)

(a)

A pensioner shall have to be present in person before the Disbursing Officer concerned on first day of April every year or on the next following day if first day of April is a public holiday.

(b)

A pensioner residing in India is excepted from personal appearance if he draws his pension through an agent who has executed a bond to refund over payments and produce at least once a year a life certificate signed by a person authorised under sub-rule (8), to sign such certificates. In such cases pension shall not be paid on account of a period of more than a year after the date of the life certificate last received, and the Disbursing Officer shall be on the watch for authentic information of death of any such pensioner, and on receipt thereof, shall promptly stop further payments.

(10)

(a)

On appearance of a pensioner claiming payment of pension his personal mark shall be checked by the Disbursing Officer and the signature of the receipt shall be compared with the photograph and the signatures/thumb impressions taken in Part IV of Form No. 1. If the pensioner cannot sign his name, his great toe impression on the receipt shall be compared with the original impression taken in Part IV of Form No. 1. In case of doubt payment may be made on the strength of the resemblance between the pensioner and his photograph, which is pasted in Part IV of Form No. 1, pending final settlement of any question which may arise about identification marks, signatures or finger impressions.

(b)

A pensioner drawing pension for the first time shall be required to produce his personal copy of the pension sanction letter of the Pension Sanctioning Authority and his signature or thumb/great toe impression on Form No. 4 shall be compared with the specimen signature or thumb/great toe impression received with the pension sanction order.

(c)

When a pensioner draws his pension through another person, the Disbursing Officer must take special precautions against fraudulent presentation of claims and satisfy himself of the existence of the pensioner and of the identity of the payee before any payment is ordered. If he feels any suspicion, he shall refer it to the pensioner before payment.

Note. - In so far as the Disbursing Officer is concerned, the authority of a person to receive payment of pension on behalf of a pensioner shall be deemed to remain unimpaired until its termination, by the death of the pensioner or otherwise, becomes known to the Disbursing Officer.

9.

(1)

The charges on account of the expenditure under these Rules shall be met out of Major Head of Account No. 288-Social Security and Welfare.

(2)

The control of expenditure making of budget provision, collection of details of sanction will be done by the Social Welfare Directorate under the Educational Department.

10.

Miscellaneous.

- Save as otherwise provided in these rules the relevant provisions of the Central Treasury Rules as adopted by the State Government shall apply mutatis mutandis for payment of pension under these rules.

11.

Payment of pension by money order.

- The pension admissible under these Rules may be remitted by Money Order at Government cost if the pensioner requests the Sub-Divisional Officer/Block Development Officer/Project Executive Officer concerned in writing for the same.

12.

Interpretation.

- Where any doubt arises as to the interpretation of any of these rules, it shall be referred to the Government in Finance Department whose decision thereon shall be final.

13.

Removal of difficulty.

- Where the Governor is satisfied that the operation of any of the provisions of these rules causes hardship in any particular case, he may order to dispense with or relax the requirement of that rule to such extent and subject to such conditions as he may consider necessary for dealing with the case in just and equitable manner.

Note. - On the death of the pensioner the pension payment order should immediately be returned by his/her family to the sub- Divisional Officer/Block Development Officer/Project Executive Officer concerned with a request to note the date of death of the pensioner.

Form No. 1

(To be sent in duplicate through the head of Panchayat/Municipality/ Notified Area Authority).

Part I

To

The S.D.O./B.D.O.

Government of Tripura,

(Through the.....)

Sir,

I beg to apply for grant of pension as admissible under the Tripura Blind and Handicapped Persons Pension Rules, 1980. Following particulars are furnished below in support of the claim :

1. Name of the applicant (In Block letters).....

2. Father's Name (and also husband's name in case of family pension).....

3. Date of birth (Documents in support thereof be attached).....

4. Permanent residential address showing Village/Town/District.....

5. Nationality.....

6. Religion.....

7. Whether any other member of the family is in receipt of pension under this Rule.....

8. Details of landed and other property held by the family.....

9. Total income of the family from all sources.....

10. Personal marks of identification.....

11. Place from where pension is desired to be drawn (Name of office of S.D.O./B.D.O./P.E.O. or the nominated officer to be mentioned).....

12. Whether in respect of any financial benefit from Central Government, State Government, local bodies, Statutory corporations, public sector undertakings or nationalised institutions and similar other organisations ?.....

If so, the monthly amount and details thereof.....

I enclose/attach herewith a Certificate in support of incapacity to work three recent passport size photographs and two copies of specimen signature/Left hand thumb finger impression duly attested.

I hereby declare that the particulars given above are true to the best of my knowledge.

Date.....

Signature of the applicant

Part II

Forwarded to the S.D.O./B.D.O./P.E.O.....

The particulars furnished by the applicant in Part I above have been found correct.

Grant of pension is recommended.

Signature of the Head of Panchayat/ Municipality/Notified Area Committee

Part III

To

The S.D.O./B.D.O./P.E.O.

The undersigned having satisfied himself hereby orders the grant of pension of Rs. 30 (Rupees thirty) only per month to Shri/Smt son/daughter/wife of of village/town..... of District..... Tripura with effect from.....

Until further order, and on the expiry of every month, please pay to.....the sum of Rs (Rupees) (Less income tax), being the amount of as pension upon the production, of the pensioner's copy of this order taking from the claimant a receipt of the amount according to usual form.

The payment should commence from.....

The expenditure on this account is debitable to.....

Signature and Designation of the Pension Sanctioning Authority.

Part IV

Place of signature of pensioner to be taken at the time of first payment. Amount of pension.....(in words).....

This document is to be retained by the Disbursing Officer so long as the authority remains in force in such manner that the pension shall have no access to it. Every separate payment is to be recorded below :

Month for which pension is due

19....

19....

19....

19....

19....

19....

19....

19....

19....

19....

Remarks

Date of payment

Disbursing Officer's initials

Date of payment

Disbursing Officer's initials

Date of payment

Disbursing Officer's initials

Date of payment

Disbursing Officer's initials

Date of payment

Disbursing Officer's initials

MarchAprilMayJuneJulyAugustSeptemberOctoberNovemberDecemberJanuaryFebruary

Note of Pensioner's Identification

*If the payment by postal Money order identification is required twice a year as prescribed otherwise annually.

Form No. 2

Register of Sanction of Blind and Handicapped Persons Pension

Sl. No.

Name of applicant with address
Date of receipt of the application
Date of sanction of pension
Initial of the sanctioning authority
Date of issue of the authority by pension
sanctioning authority
Date of cessation of pension
Remarks

1
2
3
4
5
6
7
8

Form No. 3

Certified that I have carefully examined Shri/Shrimati..... son/wife of his age is by his own statement..... years and by appearance about years. Shri/Shrimati is completely blind in both the eyes/is so physically handicapped (here mentioned physically handicapped in details) that he/she is fully incapable of earning any livelihood. I consider Shri/Shrimati..... to be completely and permanently incapacitated for any work.

Signature of the

Certifying Medical Officer Regd. No.....

Form No. 4

[Treasury Rule 549 (1)]

Blind and Handicapped Persons Pension Bill

*Not exceeding Rupees.. per annum

Pension Payment Order No.

Memo. - It is requested that this form may be used for submission of next bill.

District

Head of Account

Voucher No..... of the list of payment for.....

19.....

Received the amount of pension due to me for the month of 19..... as.....

Less-Income Tax Net Rs. Received payment

(In words).....

I declare that-

(i)

I have not received any remuneration for serving in any capacity either in Government establishment or in establishment paid by the State Government, statutory corporation, public sector undertaking or nationalised institution or from a local firm;

(ii)

I have not received any pensionary benefit from Central Government, State Government, local bodies, statutory corporations, public sector undertaking or nationalised institutions and similar other organisations; and

(iii)

My family income from all sources does not exceed Rs. 4000 per annum during the period.....for which the amount of pension is due.

Station.....

.....

Date.....

Signature of the pensioner.

Form No. 5

Register of Pension Sanction Order on S.D.O./B.D.O./P.E.O.

No. of Pension sanction order and date

Name of Pensioner

Monthly amount

Remarks

Related AI tags, queries and research notes

Translation